

File No.: EXP202209488

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complaining party), on 20/07/2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the AYUNTAMIENTO DE CATOIRA, with NIF P3601000G (hereinafter, the complained party). The reasons on which the complaint is based are as follows:

The complainant states that, on 12/07/2022, more than 400 signatures from individuals were submitted to the Concello de Catoira, through the Single Registry, in support of a neighborhood protest.

The response to the document was published on the public Facebook profile of the Concello on 14/07/2022, including the name, surname, and postal address of the complainant. Along with the complaint, the published document is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 14/09/2022, the aforementioned complaint was forwarded to the complained party, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 15 September 2022, as evidenced by the certificate in the file.

After the established period, the complained party did not submit a written response to the request from the AEPD.

THIRD: On 20/10/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

FOURTH: On 18/11/2022, a response from the complained party to the information request of 14/09/2022 was received by this Agency, indicating that as soon as it became aware of the situation, the publication of the document was removed. It also provides a document sent to the Valedora do Pobo, through which it informed that autonomous institution of the facts.

FIFTH: On 08/03/2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party for the alleged violations of Articles 5.1.f) and 32.1 of the GDPR, classified in Articles 83.5.a) and 83.4.a) of the aforementioned GDPR.

SIXTH: After the notification of the initiation agreement, the complained party, through a written document dated 21/03/2023, argued, in summary: that it was not true that it had not responded to the Agency's request, although the response was late; that there was also no mention of the forwarding of the document made to the Valedora do Pobo informing of the facts; that the conduct of the complainant is important when determining the commission of the alleged violations against the complained party; that the complainant was not acting on her own behalf but as a representative of a large group of neighbors and that her refusal to receive the notification of the response to the submitted document prevented the people she represented from knowing its content, which was one of the reasons that led the complained party to publish it; that, as was already communicated to the Valedora do Pobo, the published data was known to all.

SEVENTH: On 08/06/2023, the instructor of the procedure decided to carry out the following evidence: To reproduce for evidentiary purposes the complaint filed by the complaining party and its documentation, the documents obtained and generated during the admission phase of the complaint, which are part of procedure AT/03866/2022.

To reproduce for evidentiary purposes the allegations to the initiation agreement of the referenced sanctioning procedure, submitted by the complained party, and the documentation accompanying

them.

To request the complained party to provide the following information and/or documentation:

- Document submitted by the complaining party, on behalf of the platform "Coaxe libre de Pirotecnica," which was received by that City Council on 13/07/2022, in which they requested to be informed about the file "resolution status of processing in relation to the project submitted by the company PIROGAL PIROTECNIA SOCIEDAD LIMITADA, a fireworks warehouse to be located in the place of Coaxe-Dimo Catoira (parcel of polygon No. 21)."

- Acknowledgment of receipt regarding the notification from the Mayor's Office dated July 14 sent to the complainant.

On 22/06/2023, the complained party responded to the evidence requested, the content of which is in the file.

EIGHTH: On 11/08/2023, the Director of the Spanish Agency for Data Protection issued a resolution agreeing to appoint a new instructor for the procedure.

NINTH: A Proposal for Resolution was issued stating that the Director of the AEPD should sanction the complained party with a warning for the violation of Articles 5.1.f) and 32.1 of the GDPR, classified in Articles 83.5.a) and 83.4.a) of the GDPR.

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After the legally established period, the respondent did not submit any written allegations.

TENTH: From the actions carried out in this procedure, the following have been accredited:

PROVEN FACTS

FIRST. On 20/07/2022, a written complaint from the claimant was received by the AEPD, in which it is stated that on 12/07/2022, the claimant submitted a document at the Concello of Catoira through the Single Registry, containing more than 400 signatures from individuals in support of a neighborhood protest, and on 14/07/2022, the response to the submitted document was the publication on the public profile of the Concello on Facebook, where the claimant's personal and private data appeared.

SECOND. A screenshot of the public profile of the Concello of Catoira on Facebook has been provided, showing the response to the document submitted on 12/07/2022, which includes the personal data of the claimant; it can also be observed that the Concello's stamp and the date of outgoing registration are present.

THIRD. There is a document from the respondent dated 21/11/2022, at the request of the AEPD, in which the document sent by the Mayor's Office to the Valedora do Pobo, dated 19/09/2022, regarding the complaint submitted by the claimant and the publication of the Mayor's document on Facebook, is transmitted.

FOURTH. The respondent has submitted a response document addressed to the claimant dated 14/07/2022, which, according to what the respondent stated in the written allegations, "...the claimant, in a totally unjustified manner, refused to sign that she had received the aforementioned document." In the cited document, there is a handwritten note from a municipal employee dated 14/07/2022 indicating that the claimant refused to receive it.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict

them, by the general rules on administrative procedures."

II

The reported facts materialize in the publication on the social network Facebook of a document from the Concello of Catoira, signed by its Mayor-President, which contains the name, surname, and postal address of the claimant, with the multiplying effects that the use of such instruments can have for its visibility.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

b) to impose a warning on any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;

(...)"

III

Article 5.1.f) of the GDPR establishes the following:

1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ("integrity and confidentiality").

(...)"

In relation to this principle, Recital 39 of the aforementioned GDPR states:

(39) "... Personal data must be processed in a manner that ensures adequate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and of the equipment used for processing.

Article 4 of the GDPR, Definitions, establishes in its paragraphs 1, 2, 5, 7, and 12:

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, or an online identifier;

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location, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison or interconnection, restriction, erasure, or destruction;

5) "pseudonymization": the processing of personal data in such a way that the data can no longer be attributed to a data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures to ensure that the personal data are not attributed to an identified or identifiable natural person;

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States;

12) "personal data breach": a breach of security that results in the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed;

IV

Article 83.5 a) of the GDPR considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to penalties.

The LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

On the other hand, the LOPDGDD, for the purposes of prescription, in its Article 72 states:

“Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)”

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1. The documentation in the file evidences that the respondent violated Article 5 of the GDPR, principles related to processing, by allowing access to personal data as a consequence of the publication of the document by the respondent on social media, which constitutes data processing that, using the infrastructure of such networks, discloses facts and data that allow the identification of the claimant through the information exposed. Furthermore, this infrastructure is a means by which its effects can be multiplied as other users share the news, violating the principles of integrity and confidentiality, both established in the aforementioned Article 5.1.f) of the GDPR.

The respondent, in a document addressed to this body, has acknowledged the facts, indicating the reasons that led to the publication on the local entity's Facebook profile: the claimant refused to receive notification of the response to their document and that the individuals who were part of the collective represented by the claimant were aware of its content, although the document was removed as soon as the situation on the social network was known.

It should be noted that the post or text published by the respondent constitutes data processing, which, using Facebook's infrastructure, discloses facts and data that allow the identification of the claimant through the published document where their name, surname, and address are listed along with the various circumstances presented therein.

The duty of confidentiality should be understood as aimed at preventing unauthorized leaks of data not consented to by the data subjects.

This duty of confidentiality is an obligation that pertains not only to the data controller and processor but also to anyone involved in any phase of the processing and is complementary to the duty of professional secrecy.

2. The respondent is an entity that provides a series of public services, for which it processes personal data of its employees and citizens.

The respondent, like any other public entity, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data - GDPR - and with Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights - LOPDGDD - concerning the processing of personal data it carries out, understanding personal data as “any information relating to an identified or identifiable natural person.”

It carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity and, by virtue of Article 4.7 of the GDPR, is responsible for the processing; it is the body that determines the purposes and means of the processing.

The above, regardless of whether the data published about the claimant, as the respondent indicates

in its written allegations to the agreement of

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Beginning, as stated in the document sent to the Valedora do Pobo, “they are known not only in Coaxe, where they were published on the notice board, but throughout this small municipality of Catoira, where we all know each other...”

If it is true, as the respondent states in this same document, that “he only sought, as the sole objective of the publication of the document addressed to the claimant, who acted on behalf of a large collective, to protect the right of its members to know its content,” he could have proceeded by removing personal data and anonymizing it so that their right to the protection of personal data would not be affected. Therefore, the actions of the respondent demonstrate a violation of the principle of confidentiality, in accordance with the provisions of Article 5.1.f), an infringement classified in Article 83.5.a) of the aforementioned Regulation.

VI

Secondly, the respondent is attributed with the infringement of Article 32 of the GDPR “Security of processing,” which establishes that:

“1. Taking into account the state of the technology, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.
4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

VII

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

“4. Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total global annual turnover of the preceding financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43. (...)”

For its part, the LOPDGDD in its Article 71, Violations, states that: “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute violations.”

And in its Article 73, for the purposes of prescription, qualifies as “Serious Violations”:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: violations that constitute a substantial infringement of the articles mentioned therein and, in particular, the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.”

(...)

VIII

1. The GDPR defines personal data security breaches as “all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

The documentation in the file provides clear indications that the respondent has violated Article 32 of the GDPR, as a security incident occurred due to the absence of adequate security measures that led to the publication on the Concello's Facebook profile of the response notification to the document submitted by the claimant, where personal data is accessible.

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It should be noted that the GDPR in the cited provision does not establish a list of security measures that are applicable according to the data being processed, but rather states that the data controller and the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportional to the identified risk, indicating that the determination of the technical and organizational measures must be carried out considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (which are not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the processing of data, as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same regard, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which are particularly likely to cause physical, material, or immaterial harm.”

2. In the present case, as stated in the facts and within the framework of the investigation file, the AEPD forwarded the complaint submitted to the respondent on 09/15/2022 for analysis and requested that this Agency be informed of the actions taken to comply with the requirements set forth in the data protection regulations; although the respondent stated in a written submission to the initiation agreement that they did not understand why it was indicated that there had been no response to the AEPD's information request, the truth is that such a response was provided on 11/18/2022 outside the established deadline, when the complaint submitted by the complainant had already been admitted for processing.

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As stated in the third background, the complaint was admitted on 20/10/2022, after the response period had elapsed and in accordance with Article 65 of the LOPDGDD.

The respondent, both in the letter dated 21/11/2022, to which it attaches the letter sent to the Valedora do Pobo institution, informing of the facts, and in the response to the evidence presented, has confirmed the publication and the reasons that led to it.

There is no doubt that the publication of the letter on the social network and therefore the access to the aforementioned information by third parties aims to inform all members of the association of the entity's response, but it cannot be forgotten that the revelation on the social network constitutes an automated processing of data that allows knowledge of facts and data that identify the complainant.

On the other hand, it should be noted that searching the internet for the name, surname, and address of the affected person can yield results that, when combined with those accessed by third parties, may allow access to other applications or the creation of personality profiles, which may not have been consented to by the data subject.

All these facts demonstrate that the entity being complained about has not effectively respected the appropriate technical and organizational measures to guarantee the security and confidentiality of the data, especially those aimed at preventing access by unrelated third parties, with the multiplying effects that social networks can have on visibility, being moreover the data controller by deciding the purposes and means of the collection and processing of the personal data used.

The responsibility of the respondent is determined by the lack of adequate security measures, as it is responsible for making decisions aimed at effectively implementing the appropriate technical and organizational measures to ensure a level of security appropriate to the risk to safeguard the confidentiality of the data, restoring its availability and preventing access to it in the event of a physical or technical incident.

In accordance with the above, it is considered that the respondent is responsible for the infringement of the GDPR: the violation of Article 32, an infringement classified in its Article 83.4.a).

IX

Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 states:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides as follows:

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"1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, if applicable, and to the affected parties who had the status of interested parties, if

applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is accredited, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Bulletin or the corresponding autonomous bulletin.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities."

In the case examined, the sanctioning procedure arises from the fact that the respondent, as stated in the facts, has violated the regulations on personal data protection both regarding the principle of confidentiality of the data and the technical and organizational measures implemented.

Such conduct constitutes an infringement by the respondent of the provisions of Articles 5.1.f) and 32.1 of the GDPR.

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It should be noted that the GDPR, without prejudice to the provisions of its Article 83, provides in its Article 77 the possibility of resorting to a warning sanction to correct personal data processing that does not comply with its provisions, when the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law.

Additionally, Article 58 of the GDPR, in its paragraph 2 d), states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

X

Having confirmed the infringement, it is appropriate to impose on the controller the adoption of adequate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame".

In this case, the respondent is required to demonstrate, within two months from the notification of this resolution:

- The adoption of adequate measures to prevent future incidents similar to those that led to the initiation of this sanctioning procedure, avoiding security incidents such as the one indicated by allowing access to the personal data of the complainant as a result of the publication of their personal data on the public profile of the Concello on Facebook.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the TOWN HALL OF CATOIRA, with NIF P3601000G,

- For an infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR, a warning sanction.

- For an infringement of Article 32.1 of the GDPR, classified in Article 83.4.a) of the GDPR, a warning sanction.

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SECOND: TO ORDER the TOWN HALL OF CATOIRA, to demonstrate within two months from the notification of this resolution, the adoption of adequate measures to prevent incidents like the one that led to the sanctioning procedure and that the processing carried out complies with the provisions of the GDPR.

THIRD: TO NOTIFY this resolution to the TOWN HALL OF CATOIRA.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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